Defence (Regular Force) (Non-Commissioned Members) (Amendment) Regulations, 2024 (No. 8)

IT is hereby notified that the Minister of Defence, in terms of section 113 of the Defence Act [*Chapter 11:02*], and after consultation with the Defence Forces Service Commission, has made the following regulations:—

1. These regulations may be cited as the Defence (Regular Force) (Non-Commissioned Members) (Amendment) Regulations, 2024 (No. 8).

2. These regulations shall come into effect on the 1st January, 2025.

3. The Defence (Regular Force) (Non-Commissioned Members) Regulations, 1989, published in Statutory Instrument 172 of 1989, are amended in section 18 ("Retirement") by the repeal of subsections (4), (5) and (6) and the substitution of—

"(4) A permanent member shall, whatever the length of his or her pensionable service, retire on attaining the age of fifty-five years:

Provided that—

(a) if the Minister, on the recommendation of the Commander, considers that it is desirable in the public interest, he or she may allow that member to continue to serve for a period of five years until he or she attains the age of sixty years; or

(b) if that member is allowed to continue to serve in terms of paragraph (a), the Commander may, on giving twelve months' written notice to the member of his or her intention to do so, require him or her to retire before he or she has served that period.

(5) A member who has continued to serve in terms of proviso (a) to subsection (4) shall retire on attaining the age of sixty years:

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Provided that a member who is a war veteran shall continue to serve for further periods, not exceeding twelve months at a time, until he or she attains the age of sixty-five years.

(6) A member who has continued to serve in terms of subsection (5) shall retire on attaining the age of sixty-five years.".